

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 07/06/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED
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Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: C23-02039
CASE NAME: OLD REPUBLIC NATIONAL TITLE INSURANCE COMPANY VS. RICKY HORTON
***HEARING ON MOTION IN RE: QUASH SUBPOENA DUCES TECUM**
FILED BY: HORTON, RICKY DEAN
TENTATIVE RULING:

Defendant Ricky Dean Horton ("Defendant R. Horton") filed a motion to quash subpoena on February 20, 2026 (the "Motion to Quash"). The Motion to Quash was set for hearing on July 6, 2026. The motion is opposed.

Background

The Motion to Quash seeks an order quashing a subpoena dated February 3, 2026 (the “Subpoena”) directed to Valley Strong Credit Union (the “Bank”) requesting production of Defendant R. Horton’s personal bank account records (the “Bank Records”). See Declaration of Ricky Dean Horton filed February 20, 2026 (“R. Horton Decl.”), ¶13 and **Exhibit A** (Deposition Subpoena for the Production of Business Records). The Subpoena was issued by counsel for plaintiff Old Republic National Title Insurance Company (“Plaintiff”).

Analysis

Defendant R. Horton argues that the disclosure of his personal financial information through the subpoenaed Bank Records violates his right to privacy. He argues that the Bank Records are not relevant to the issues in this lawsuit. He also argues that the subject Subpoena is overbroad and unduly burdensome. Lastly, he objects that that Subpoena is defective for failure to be accompanied by a supporting affidavit.

Asserted Procedural Deficiency regarding Separate Statement

Plaintiffs contend that Defendant R. Horton’s motion is defective because he failed to file a Separate Statement in support of the Motion to Quash.

Any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement, including a motion to “...quash the production of documents or tangible things at a deposition.” Rule 3.1345(a)(5) of the California Rules of Court (“CRC”); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025) (“Rutter Civ. Pro.”) § 8:602.5.

However, this requirement does not apply “[w]hen no response has been provided to the request for discovery.” CRC 3.1345(b)(1). It does not appear that any written response was provided to the subject Subpoena.

The supplemental papers filed June 22, 2026 by Defendant R. Horton included a copy of the Notice of Objection served on the Bank on February 20, 2026. It did not contain an item by item written response to the category or categories of documents sought.

In any event, the Court exercises its discretion to consider the matter, especially since the subject Subpoena only involves a single request for documents.

Privacy

When considering restrictions on the scope of discovery based on privacy concerns, the California Supreme Court has set out the applicable framework. The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. *Williams v. Superior Court* (2017) 3 Cal.5th 531, 552 (“*Williams*”). The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. *Id.* A court must then balance these competing considerations. *Id.* Obvious invasions of interests fundamental to personal autonomy must be supported by a compelling interest. *Id.*

The Court finds that Defendant R. Horton has shown a legally protected privacy interest in the Bank Records, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. A right of privacy exists as to a party’s confidential financial affairs, even when

the information sought is admittedly relevant to the litigation. See *Cobb v. Superior Court* (1979) 99 Cal.App.3d 543, 549; see also Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025) § 8:303 *et seq.* One's personal banking records contain sensitive personal information about their financial affairs, as Defendant R. Horton's declaration plainly attests with respect to his own banking records. See R. Horton Decl., ¶¶4-7.

The Court next turns to the question of whether Plaintiffs have shown legitimate and important countervailing interests in the disclosure of the Bank Records and the balancing of such interests against the privacy considerations.

This action arises from the purported payoff of a mortgage loan taken out by co-defendant Kevin Horton ("Defendant K. Horton") and secured by 2017 deed of trust. Defendant R. Horton and defendant K. Horton contend that this mortgage loan was paid off through a 2020 refinance transaction with the lender Freedom Mortgage Company. Plaintiffs and other parties, including Freedom Mortgage Company, contend that the 2020 refinance loan was canceled and did not fund, but that the lender mistakenly recorded certain instruments relating to the 2020 refinance which were later rescinded. See Complaint filed August 17, 2023; see also Minute Orders dated January 12, 2026 (regarding rulings on motions for summary judgment brought by Defendant R. Horton and Defendant K. Horton).

The Bank Records are sought for a three-year time period:

DOCUMENTS REQUESTED:

Produce any and all bank account records relating to bank accounts at Valley Strong Credit Union, in the name of Ricky Dean Horton, from January 1, 2021 through January 1, 2024.

See R. Horton Decl., **Exhibit A**.

Plaintiffs have not shown that the Bank Records are directly relevant to investigate financial transactions relating to the disputed issues, such that Plaintiffs have a strong countervailing interest in the disclosure of the Bank Records.

The Opposition argues that the subpoenaed Bank Records are reasonably calculated to lead to the discovery of admissible evidence related to the allegedly canceled 2020 refinance loan payoff as well as the contentions that "R. Horton provided incomplete and knowingly false information to Plaintiff in connection with his acquisition of the subject property in 2023" and related allegations in Defendant R. Horton's Cross-Complaint. See Amended Cross Complaint filed December 29, 2023. Defendant R. Horton alleges that he purchased the subject property on or around January 19, 2023, unencumbered by the 2017 deed of trust. *Id.* at p. 2 *et seq.* This Amended Cross Complaint was later dismissed on February 16, 2024.

However, there is no showing of any likelihood that any financial transactions relating to the 2020 refinance loan or the purported January 2023 purchase involved the Bank.

Although Plaintiffs assert that the Bank Records are for Defendant R. Horton's "only known bank account," that does not establish any link to what, if any, banking institution may have been used by Defendant R. Horton in relation to the 2020 refinance loan or transactions relating to the purported January 2023 purchase.

No evidence was proffered to indicate that the source of funds relating to any of these transactions was the Bank or that monies following from the transactions went to the Bank. Nor is there even evidence that Defendant R. Horton even had accounts at the Bank at the time so that it might reasonably be

inferred that monies flowed into or out of this Bank in connection with the transactions at issue.

Weighing the privacy concerns against the need shown, or lack thereof, the Court concludes that Plaintiffs have not made a sufficient showing on this record of basis to require the disclosure of the Bank Records over the privacy objection by Defendant R. Horton.

Nonetheless, nothing herein suggests that Defendant R. Horton would not be obligated to produce banking records in his custody, possession or control regarding the transactions at issue. The Court only rules that Plaintiffs' Subpoena, framed as it is for the production of all of Defendant R. Horton's banking records during the described time period, fails to overcome the privacy objection interposed.

Other Issues

In light of the foregoing, the Court need not consider the other issues raised by Defendant R. Horton as to the validity of the Subpoena.

Disposition

The Court finds and orders as follows:

1. The Motion to Quash is GRANTED.
2. The Subpoena is hereby QUASHED and the Bank shall not produce any documents to the requesting party in response to it. Any documents previously produced by the Bank pursuant to the subpoena, if any, shall be returned, forthwith, to the custody of the moving party.
3. The Court shall issue the order after hearing.

2. 9:00 AM CASE NUMBER: C23-02305
CASE NAME: ELIZABETH REYES VS. WESTERN DENTAL SERVICES, INC
***HEARING ON MOTION FOR DISCOVERY COMPEL DEFENDANT TO PAY ALL ARBITRATION FEES**
FILED BY: REYES , ELIZABETH
TENTATIVE RULING:

Plaintiff Elizabeth Reyes ("Plaintiff") filed a Motion to Compel Defendant to Pay All Arbitration Fees on March 17, 2026 (the "Motion to Compel Payment of Fees"). The Motion to Compel Payment of Fees was initially set for hearing on September 14, 2026. The Court advanced the hearing date to July 6, 2026. The motion is opposed.

Background

This matter began with a Complaint filed by Plaintiff on September 13, 2023. The Complaint alleges various claims against Plaintiff's former employer, defendant Western Dental Services, Inc. ("Western Dental").

Pursuant to the stipulation of the parties (the "Stipulation"), the matter was referred to binding arbitration under a written arbitration agreement between the parties (the "Arbitration Agreement"). See Joint Stipulation to Binding Arbitration and Order thereon filed September 16, 2024 (the "Arbitration Order") and **Exhibit A** thereto.

The Court's Minute Order dated December 6, 2024 reflects that the parties sought additional time to complete the arbitration. A further Case Management Conference (CMC) was set for May 29, 2025. At

that time, the parties reported that the arbitration was scheduled for December 2025. A further CMC was set for January 7, 2026. At the CMC in January 2027, the Court was again advised that the matter was set for arbitration in March 2026, although there was reference to an issue regarding the payment of arbitration fees. The CMC was continued again to June 5, 2026.

This motion followed.

Analysis

As set forth in the Stipulation approved by the Court's Arbitration Order, Western Dental is required "to pay all arbitrator's fees and costs unique to arbitration, including all filing fees." See Stipulation, ¶4.

Plaintiff details the parties' agreement to arbitrate before Eve Wagner of Signature Resolution (the "Arbitrator"). See Declaration of Sylvia V. Panosian filed March 17, 2026 ("Panosian Decl.") ¶5. Various proceedings were conducted as the arbitration proceedings moved forward. See *id.* at ¶6 *et seq.*

On November 14, 2025, an arbitration invoice was issued for \$23,000.00 (the "November 14th Invoice"). *Id.* at ¶15. That remained unpaid by Western Dental as of the time of the motion. *Id.* In January 2026, Western Dental's counsel indicated that Defendant likely cannot pay for arbitration. *Id.* at ¶20.

By January 17, 2026, Signature Resolution sent notice regarding two unpaid invoices. *Id.* at ¶21 and **Exhibit 15** thereto. The Invoice dated December 15, 2025 was for \$177,100.00 and was inclusive of multiple full day arbitration session (at \$23,000 per each session) plus various other line items relating to the conduct of the binding arbitration. That invoice was due upon receipt. *Id.* The other was the November 14th Invoice in the amount of \$23,000.00. That invoice was due upon receipt as well. *Id.* These amounts total \$200,100.00 (the "Fees").

On January 22, 2026, the Arbitrator vacated the hearing date in light of the non-payment of the fees by Western Dental and Plaintiff advising the Arbitrator that a court motion would be made to deal with the matter. *Id.* at ¶22 and **Exhibit 16** thereto.

Code of Civil Procedure section 1281.98 provides that in an employment arbitration where the drafting party has failed to pay the required arbitration provider fees, the other party employee "may unilaterally elect" certain remedies. See Code Civ. Proc. § 1281.98(a) and (b). Those remedies include seeking an order "compelling the drafting party to pay all arbitration fees that the drafting party is obligated to pay under the arbitration agreement or the rules of the arbitration provider." *Id.* at § 1281.98(b)(3).

Plaintiff has properly elected its statutorily proscribed remedy for Western Dental's failure to pay the Fees and this Court concludes that it is just and appropriate compel it to comply with its obligation to pay the Fees in accordance with Section 1281.98.

Western Dental contends that it is not obligated to pay the Fees because Section 1281.98 is preempted by the Federal Arbitration Act (9 U.S.C. § 1 *et seq.*) (the "FAA"). Plaintiff counters that the arbitration here is not governed by the FAA because of the parties' Stipulation to proceed under the California arbitration statutes.

Western Dental is correct that the Arbitration Agreement is governed by the FAA. This is expressly provided for in the subject agreement, incorporated into the Court's Arbitration Order:

This Agreement evidences a transaction involving commerce and is governed by the Federal Arbitration Act, 9 U.S.C. § 1 et seq. The arbitration shall be conducted using the American Arbitration Association's

Arbitration Agreement, p. 1, Arbitration Order, **Exhibit A**.

Nonetheless, the Court has considered and rejects the argument that because the FAA applies, Section 1281.98 is preempted. As addressed in the reply, the California Supreme Court has recently held that Section 1281.98 is not preempted by the FAA. *Hohenshelt v. Superior Court* (2025) 18 Cal.5th 310, 323 (“*Hohenshelt*”) (“We hold that section 1281.98, properly construed, is not preempted by the FAA.”).

Even the one case noted by *Hohenshelt* to have been the “one exception” to the cases where the Courts of Appeal have upheld the CAA’s payment provisions against preemption challenges—*Hernandez v. Sohnen Enterprises, Inc.*—observed that preemption does not apply to state laws that regulate arbitration without undermining the FAA’s substantive policies. See *Hernandez v. Sohnen Enterprises, Inc.* (2024) 102 Cal.App.5th 222, 243 (“*Hernandez*”) (“State laws that regulate arbitration without undermining the FAA’s substantive policies are not preempted.”); see also *Hohenshelt, supra*, 18 Cal.5th at 326. The provisions of Section 1281.98 regarding payment of fees serve to promote and not undermine the FAA’s policy in favor of arbitration. See *Hohenshelt, supra*, 18 Cal.5th at 348 (“**Indeed, it would be ironic if the FAA’s policy of enforcing agreements to arbitrate effectively cannibalized a state law that aims to keep parties to such agreements moving forward in arbitration by requiring timely payment of arbitration fees.**”) (emphasis added).

Nor is the Court persuaded by Western Dental’s arguments to the effect that it should not be compelled to pay the Fees because doing so would not “just and reasonable” or would otherwise be unfair. In the days of \$2,000+ hourly mediator/arbitrator fees, there is nothing shocking about a \$23,000 per day cost for a full-blown binding arbitration process. Importantly, Western Dental knew the costs at the outset. Indeed, the \$23,000 amount appears on Signature Resolution’s standard Rate and Fee Schedule which Western Dental’s received when the retention was agreed upon back in 2024. Panosian Decl., ¶¶6-8 and **Exhibit 6** thereto. Yet, it was content to continue with the process and the Arbitrator it had agreed to select.

Moreover, there is nothing in the opposition declarations that even purport to proffer admissible evidence to demonstrate that the Fees are unreasonable. Western Dental does not offer any survey of comparable rates for similar services or the like. That it may not have had cash on hand “reasonably available in the ordinary course of business to satisfy the full amounts” does not render the Fees unjust, unreasonable or unfair to such an extent that the Court concludes that Western Dental should be found to be able to avoid its statutory obligations under California law. See Declaration of Alex Santana, ¶4. Nonetheless, the Court has considered these asserted circumstances in fashioning the order made herein.

Sanctions

Code of Civil Procedure section 1281.98 addresses sanctions. See Code Civ. Proc. § 1281.98(d). The arbitrator “shall impose appropriate sanctions” where the employee continues in arbitration pursuant to paragraphs (2) through (4) of Subdivision (b). *Id.*

Plaintiff has elected to continue the arbitration pursuant to Paragraph (2) of Subdivision (b) of Section 1281.98. Accordingly, the issue of the imposition of further sanctions is left to the Arbitrator for determination in due course.

Disposition

The Court finds and orders as follows:

1. The Motion to Compel Payment of Fees is GRANTED.

2. Western Dental is ordered to pay the Fees within thirty (30) days of notice of entry of this order unless on or before such date it has made such other arrangements for the payment of the fees acceptable to the arbitration service provider to permit the arbitration to be rescheduled and proceed with all deliberate speed. Nothing in this order addresses or shall affect any right to any refund of any portion of the Fees in accordance with the rules or agreements governing the arbitration service provider's fees.
3. The moving party shall prepare the order after hearing.

3. 9:00 AM CASE NUMBER: C24-02117
CASE NAME: ADRIENNE THOMAS VS. PACIFICA GAS AND ELECTRIC COMPANY
***HEARING ON MOTION IN RE: LEAVE TO FILE SECOND AMENDED COMPLAINT**
FILED BY: THOMAS, ADRIENNE
TENTATIVE RULING:

Before the Court is a motion by plaintiff Adrienne Thomas to file a second amended complaint. For the reasons set forth, the motion is **GRANTED** on the terms set forth in the conclusion and ruling below.

Background

This action commenced on August 14, 2024 when Plaintiff filed a complaint alleging a cause of action for breach of contract against defendant Pacific Gas and Electric Company, but also making allegations of "illegal business practices, based on fraud." (Compl. ¶¶ 8, 9.) Though Plaintiff asserts her complaint was for Declaratory and Injunctive Relief (Mot. for Lv. p. 2), the complaint on its face sought monetary damages and neither declaratory nor injunctive relief. (Compl. ¶ 10.) The complaint attached an April 9, 2024 "right to sue" letter issued by the Civil Rights Department of the State of California ("CRD," formerly, the Department of Fair Employment and Housing ("DFEH")), which in turn attached a copy of Plaintiff's complaint to the CRD in which she alleged violations of the California Fair Employment and Housing Act, Government Code section 12900, *et seq.* ("FEHA"), including discrimination on various grounds and wrongful termination. PG&E filed an answer to the complaint on September 13, 2024.

PG&E has removed the case to the United States District Court for the Northern District of California three times since the action was filed, on September 13, 2024, December 17, 2024, and July 14, 2025. The case has been remanded to this Court each time by orders of the federal district court reflected in filings made in this Court on November 8, 2024, March 6, 2025, and December 11, 2025.

After the case was filed, Plaintiff apparently participated in an arbitration proceeding, and on June 11, 2025, Plaintiff filed a motion to vacate the arbitration award. Based on Plaintiff's motion to vacate the arbitration award, the arbitration appears to have been conducted pursuant to a grievance procedure in a collective bargaining agreement between Plaintiff's union, Engineers and Scientists of California, Local 20, IFPTE, AFL-CIO & CLC, and PG&E dated March 1, 2023 (the "CBA"). (6/11/2025 Mot. to Vac. Arb. Award Attachment.)

Plaintiff's motion to vacate the arbitration award was set for hearing on September 15, 2025. The

motion was not heard based on PG&E's July 14, 2025 notice of removal of the action to the federal court. Plaintiff attempted to file a first amended complaint two times, on October 16, 2024, while the action was before the federal court based on PG&E's September 13, 2024 notice of removal, and again by filing a motion for leave to file a first amended complaint on June 27, 2025, which was not heard because of PG&E's July 14, 2025 notice of removal. (See Corresp. Memo. dated 10/16/2024; 6/11/2025 Mot. for Lv. to File FAC.)

Plaintiff now moves for leave to file a second amended complaint ("Proposed 2AC"). The Proposed 2AC is attached to the moving papers and includes 17 causes of action. PG&E opposes the motion.

Legal Standards for Motion for Leave to Amend

The Court has broad discretion to grant leave to amend a pleading at any stage in a case. (See Code Civ. Proc. § 473(a) [court may allow amendment "in furtherance of justice, and on any terms as may be proper"].) (See also Code Civ. Proc. § 576 ["Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order."].) "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion. [Citations omitted.]" (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530.) California has a liberal policy of allowing amendments to pleadings; it is a rare case when leave to amend should be denied, particularly when there is no showing of prejudice to the other side. (*Douglas v. Superior Court* (1989) 215 Cal.App.3d 155, 158; *Hong Sang Market, Inc. v. Peng* (2018) 20 Cal.App.5th 474, 488.)

Defendant's Request for Judicial Notice

PG&E asks the Court to take judicial notice of (a) the CBA (an attachment to Exhibit 1 to the Roberts Declaration in opposition to the motion); (b) an April 14, 2025 Arbitrator's Decision and Award (Roberts Decl. Exh. 2); and (c) multiple documents filed by Plaintiff with the DFEH and federal Equal Employment Opportunity Commission ("EEOC") or issued by the DFEH and EEOC (Roberts Decl. Exhs. 3-9). For the reasons explained below, the Court denies PG&E's request, because the Court does not find the documents relevant to the issues to be determined on the motion. (*Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison* (1998) 18 Cal.4th 739, 748, fn. 6 [judicial notice denied where "the requests present no issue for which judicial notice of these items is necessary, helpful, or relevant"].)

Analysis

Plaintiff contends she seeks leave to amend to more clearly present her claims with exhibits, modifying or expanding legal theories based largely on facts already pled. She argues there is no prejudice to PG&E because the facts were already alleged, and there is no trial date set in the case. As PG&E concedes, Plaintiff attempted to file her first amended complaint in October 2024, but the filing was rejected as the case had been removed to the federal district court and was not remanded until November 2024. She declares she provided counsel for PG&E a copy of her first amended complaint in November 2024. (Thomas Decl. ¶ 5.) After November 2024, the case was removed to federal district court by PG&E and remanded two more times.

Plaintiff filed a motion for leave to file her first amended complaint in June 2025 after the case had been remanded, and the copy of the proposed first amended complaint attached to that motion lists the same 17 causes of action alleged in the Proposed 2AC. The motion could not be heard because PG&E again removed the case to federal court approximately three weeks later.

PG&E does not contend Plaintiff has unduly delayed in seeking leave to amend or that PG&E will be prejudiced by allowing Plaintiff to file her 2AC, other than by having to defend the claims. There is no dispute that no trial date is set in the case, and discovery is open.

The grounds for PG&E's opposition consist only of PG&E's contention that some, but not all, of the causes of action in the Proposed 2AC are not viable. Specifically, PG&E contends 12 of the 17 causes of action Plaintiff alleged in the Proposed 2AC are time-barred or are otherwise defective or not "viable." PG&E argues leave to amend can be denied " '[w]hen amendment would be futile because the amended [complaint] would be barred by the statute of limitations,' " citing *Royal Carpet Mills, Inc. v. City of Irvine* (2005) 125 Cal.App.4th 1110, 1124. (Opp. p. 10, ll. 19-20.)

The Court declines to determine the motion for leave to amend based on the alleged merit or lack of merit of certain causes of action alleged in the Proposed 2AC. The better course is for the Court to address the merits of an amended pleading on a motion to strike, demurrer, motion for summary judgment, or similar challenge so that the merits issues can be fully briefed by both sides. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760-761; *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.) (See also *Armenta ex rel. City of Burbank v. Mueller Co.* (2006) 142 Cal.App.4th 636, 643 [if the adequacy of the pleading is unclear "the proper course of action would have been to permit amendment, after which defendants could have tested the complaint's sufficiency via demurrer or motion for judgment on the pleadings. [Citation omitted.]"].)

Nevertheless, the Court encourages Plaintiff to consider the issues raised by PG&E in the meet and confer process preceding this motion, and the defects PG&E has raised to the merits of some of the causes of action Plaintiff wishes to plead in the Proposed 2AC. (See Roberts Decl. ¶ 7.) Nothing in this ruling should be construed as any determination of the meritoriousness of any of the proposed causes of action in the proposed 2AC, including those PG&E asserts are time-barred or otherwise defective.

The Court also notes that 'Plaintiff has styled her proposed amended complaint as the second amended complaint, likely to avoid confusion given Plaintiff's attempt to obtain leave to amend to file a first amended complaint in June 2025. Because no first amended complaint was ever filed except as a proposed pleading attached to a motion, the Court directs that the proposed amended pleading should be titled as the "First Amended Complaint" when it is filed.

Though the Court will grant Plaintiff leave to file an amended pleading, leave to amend shall include Plaintiff eliminating one or more of the causes of action PG&E asserts she agreed to drop from the proposed amended complaint, if Plaintiff elects to do so. (Roberts Decl. ¶ 7.) The Court encourages the parties to meet and confer again before Plaintiff files the new First Amended Complaint in the interests of avoiding, or at least narrowing the issues involved in, future law and motion proceedings on the amended pleading.

Conclusion and Ruling

Plaintiff's motion for leave to amend her complaint is **GRANTED**. Plaintiff shall meet and confer with counsel for PG&E regarding the claims to be included in the new First Amended Complaint in light of PG&E's position that several of the claims may be time-barred or otherwise defectively pled. Taking into account the parties' further meet and confer efforts, Plaintiff shall file her first amended complaint **by August 3, 2026**.

4. 9:00 AM CASE NUMBER: C25-01269

CASE NAME: CRAIG ISHIMARU VS. JULIA ISHIMARU

***HEARING ON MOTION IN RE: APPOINTMENT OF APPRAISER PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 874.316; MEMORANDUM OF POINTS AND AUTHORITIES**

FILED BY: ISHIMARU, JULIA A

TENTATIVE RULING:

Defendant Julia Ishimaru ("Defendant") filed a motion for appointment of an appraiser (the "Motion re Appraiser") on February 25, 2026. The Motion re Appraiser was set for hearing on July 6, 2026.

Background

This action was filed May 5, 2025 seeking partition and accounting of real property held jointly by Defendant and plaintiff Craig Ishimaru ("Plaintiff"). See Complaint filed May 5, 2025 (the "Complaint"), ¶¶1-2. Defendant filed the Motion re Appraiser on February 25, 2026 offering two potential appraisers to be appointed in accordance with Code of Civil Procedure section 874.316. See Memorandum of Points and Authorities filed February 25, 2026 as part of Motion re Appraiser ("MPA"), p. 3. The proof of service attached to the Motion re Appraiser reflects service on Plaintiff's counsel. See Proof of Service dated February 25, 2026 as part of Motion re Appraiser. It should be noted that Plaintiff now represents himself. See Substitution filed June 18, 2026.

In a reply to the Motion re Appraiser, Defendant indicates that one of the proposed appraisers, Eric Riseberg, was appointed as the appraiser for separate proceedings in Alameda County. See Reply re Motion for Appointment of Appraiser filed June 26, 2026 (the "Reply"), p. 2. Defendant further describes meet and confer efforts with Plaintiff where Plaintiff indicated willingness to stipulate appointing either of Defendant's proposed appraisers. *Id.*

The Motion is unopposed.

Analysis

The Partition of Real Property Act ("PRPA") governs actions seeking partition of real property where there is no agreement to the contrary. See Code Civ. Proc. § 874.313(a). As a preliminary matter, the court must determine the fair market value of the subject property by ordering an appraisal, unless the parties have agreed to its value or the evidentiary value of the appraisal is outweighed by its cost. *Id.* § 874.316(a), (b), (c). The court shall appoint a disinterested appraiser, licensed in California, to determine the value assuming sole ownership. *Id.* § 874.316(d). Once the appraisal is completed, the appraiser shall file a verified appraisal with the court. *Id.*

Here, the parties agree that the action is governed by PRPA, and it is apparent that the parties agree to the appointment of an appraiser. See Complaint, ¶¶21-23; MPA, p. 3; Reply, p. 2. The Court sees

no evidence suggesting an agreement to the property's value nor that appraisal is overly costly. As such, the Court appoints Eric Riseberg to appraise the subject property pursuant to Code of Civil Procedure section 874.316.

Disposition

The Court hereby finds and orders as follows:

1. The motion re Appraiser is GRANTED.
2. The Court appoints Eric Riseberg to appraise the subject property pursuant to Code of Civil Procedure section 874.316(d).
3. A sworn or verified appraisal is to be filed with the Court upon completion of the appraisal pursuant to Code of Civil Procedure section 874.316(d).
4. Moving party to prepare the order after hearing.

5. 9:00 AM CASE NUMBER: C25-01650
CASE NAME: SANDY PARK VS. RENE GAMBOA
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: GAMBOA, RENE
TENTATIVE RULING:

Before the Court is a demurrer to the first amended complaint. For the reasons set forth, the demurrer is **SUSTAINED, WITHOUT LEAVE TO AMEND.**

Background

Plaintiff Sandy Park filed her complaint against her former attorney, Rene Gamboa, and his law firm, Lewis Brisbois Bisgaard & Smith, LLP (the "Firm") commencing this action on June 12, 2025. After the Court sustained a demurrer by defendants, Plaintiff filed her operative first amended complaint ("FAC") to which defendants again demur.

Plaintiff alleges that Gamboa and the Firm represented her as a plaintiff in a lease dispute with a defendant Kim. (FAC ¶¶ 1, 2.) The prior action out of which Plaintiff's claims against defendants arise is Case No. 19-CV-341095 in the Superior Court for the County of Santa Clara (the "Kim Action"). (FAC ¶ 1.)

Park alleges she retained defendants to represent her in the Kim Action in March 2021. (FAC ¶ 16.) She alleges defendants withdrew from her representation on an ex parte basis "shortly before trial." (FAC ¶¶ 2, 19 [in July 2023 approximately six weeks before trial].) Defendants "formally terminated" their attorney-client relationship with Plaintiff on or about July 25, 2023. (FAC ¶ 22.)

Plaintiff alleges on or about July 18, 2023, defendants contacted Plaintiff's handwriting expert and "discussed evidentiary issues central to the Kim action" without Plaintiff's knowledge or consent. (FAC ¶ 23.) The "contact compromised Plaintiff's litigation position" and required her to retain a new expert. (FAC ¶ 24.)

Trial was held in the Kim Action in December 2023. (FAC ¶ 25.) Plaintiff acknowledges the court in the Kim Action issued a Statement of Decision on February 20, 2024. (FAC ¶ 26.) She alleges that the Statement of Decision "was not the final judgment," that she filed a motion for new trial which was

heard on May 10, 2024, that the court retained the authority to reconsider or modify its ruling based on the new trial motion, and that the court "conclusively" determined Plaintiff's rights when the court issued its June 14, 2024 "final decision." (FAC ¶¶ 26-29.) She alleges the June 14, 2024 ruling denying relief on her new trial motion was when she "first sustained actual, non-speculative, and irreversible injury" and that until the June 14, 2024 ruling, her damages were "contingent" and "uncertain." (FAC ¶¶ 30, 31, 51.) She alleges this lawsuit was timely filed on June 12, 2025, within one year of the June 14, 2024 ruling. (FAC ¶¶ 38, 52.)

Plaintiff also alleges defendants failed to return her retainer balance and all unearned fees upon defendants' withdrawal in July 2023 contrary to the Rules of Professional Conduct. (FAC ¶¶ 32-34.) She alleges defendants were obligated to return all unearned fees and failed to return a \$5,000 retainer in July 2023, and after trial concluded in December 2023 only issued a partial refund. (FAC ¶¶ 32-34.)

Plaintiff alleges three causes of action for breach of defendants' contract to render professional services and professional negligence (1st C/A, *see in particular* FAC ¶¶ 42, 43, 45, 46), breach of fiduciary duty (2nd C/A, *see in particular* FAC ¶¶ 57, 59-61), and failure to return unearned fees (3rd C/A, *see in particular* FAC 71-79). Defendants have filed a general demurrer to the FAC in its entirety on the ground the claims are barred by the one-year statute of limitations of Code of Civil Procedure section 340.6 and therefore fails to state a cause of action against them.

Legal Standards Governing Demurrer

In ruling on the demurrer, the Court must accept as true all well-pleaded factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Julian v. Mission Community Hospital* (2017) 11 Cal.App.5th 360, 374.) The Court gives "the complaint a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) (*See also* Code Civ. Proc. § 452.) In ruling on a demurrer, the Court also considers matters subject to judicial notice. (*Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.)

A general demurrer on statute of limitations grounds may be sustained if it "clearly and affirmatively" appears on the face of the complaint that the cause of action is barred, not that it might be barred. (*Committee for Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42; *Lee v. Hanley* (2015) 61 Cal.4th 1225, 1232.) If the demurrer is sustained, plaintiff "has the burden of proving the possibility of cure by amendment." (*Czajkowski v. Haskell & White, LLP, supra*, 208 Cal.App.4th 166, 173 [quoting *Grinzi v. San Diego Hospice Corp.* (2004) 120 Cal.App.4th 72, 78-79 (internal quotations omitted)].)

Defendants' Request for Judicial Notice

In support of their demurrer, Defendants request the Court take judicial notice of the Statement of Decision and Judgment filed February 20, 2024 in the Kim Action (RJN Exh. A). The Court **grants** the unopposed request.

Judicial notice of a prior order or judgment may be taken in ruling on a demurrer. (Evid. Code § 452(d); *Shine v. Williams Sonoma, Inc.* (2018) 23 Cal.App.5th 1070 [affirming judgment dismissing

complaint on the grounds of res judicata based on prior litigation and a settlement in the prior litigation].) (See also *Sosinsky v. Grant* (1992) 6 Cal. App. 4th 1548, 1569 [judicial notice of prior order or judgment].) A demurrer may be sustained based on judicially noticed documents or facts, even if they contradict allegations of the complaint. (*Evans v. City of Berkeley, supra*, 38 Cal.4th at 7 fn. 2, 8 fn. 3, and 9 fn. 5 [in which the Court took judicial notice of a City resolution, legislative history, a memorandum from a city manager, minutes, a city attorney's opinion, and a letter, alleged in the original complaint but not the operative complaint, from which both sides quoted and the Court found "no potential dispute exists as to the letter's language, allowing its consideration on demurrer"].) The Court does not take judicial notice of the truth of the findings or conclusions in the Statement of Decision and Judgment (RJN Exh. A) to the extent reasonably disputable, but the Court takes judicial notice that the findings and conclusions were made, and the Statement of Decision and Judgment issued and filed with the court in the Kim Action on the date stated on the face of the document, and their legal effect. (*Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564-1570.)

Plaintiff's Exhibits to Her Opposition

Plaintiff has attached two exhibits to her opposition to the demurrer: (1) a copy of the June 14, 2024 Order After Hearing and Judgment in the Kim Action (Opp. Exh. A), a copy of which is also attached as Exhibit A to Plaintiff's FA; and (2) an unauthenticated copy of an email chain between Plaintiff and defendants' counsel (Opp. Exh. B). The Court will not consider Exhibit B in ruling on the motion as evidence outside the scope of judicial notice and not properly considered on a demurrer. (*Donabedian, supra*, 116 Cal.App.4th at 994.) The Court interprets Plaintiff's opposition as requesting judicial notice of the June 14, 2024 Order After Hearing and Judgment in the Kim Action, which the Court will consider for the same reasons and under the same authority cited above in reference to the February 20, 2024 Statement of Decision and Judgment.

Analysis

Code of Civil Procedure section 340.6(a) governs the statute of limitations on claims for attorney malpractice. The statute provides, "An action against an attorney for a wrongful act or omission, other than for actual fraud, arising in the performance of professional services shall be commenced within one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the facts constituting the wrongful act or omission, or four years from the date of the wrongful act or omission, whichever occurs first." (Code Civ. Proc. § 340.6(a).) The statute also provides that the period for filing an action is tolled "during the time that any of the following exist: [¶] (1) The plaintiff has not sustained actual injury; [¶] (2) the attorney continues to represent the plaintiff regarding the specific subject matter in which the alleged wrongful act or omission occurred; . . . [¶] the plaintiff is under a legal or physical disability that restricts plaintiff's ability to commence legal action. . . ." (*Id.*)

The one-year statute of limitations of section 340.6 applies not only to a cause of action for attorney malpractice but also to causes of action stemming from non-legal services incidental to the legal relationship "when the merits of the claim will necessarily depend on proof that an attorney violated a professional obligation—that is, an obligation the attorney has by virtue of being an attorney—in the course of providing professional services." (*Lee v. Hanley* (2015) 61 Cal.4th 1225, 1229, 1236-1237 [emphasis added; one-year bar "applies to claims whose merits necessarily depend on proof that an

attorney violated a professional obligation in the course of providing professional services. In this context, a 'professional obligation' is an obligation that an attorney has by virtue of being an attorney, such as fiduciary obligations, the obligation to perform competently, the obligation to perform services contemplated in a legal services contract into which an attorney has entered, and the obligations embodied in the State Bar Rules of Professional Conduct."].) (*See also Quintilliani v. Mannerino* (1998) 62 Cal.App.4th 54, 68 [one-year statute of limitations applied to breach of contract and breach of fiduciary duty causes of action arising out of attorney-client relationship and legal services even though intertwined with non-legal services].)

A. Statute of Limitations Applicable to Plaintiff's Causes of Action

Plaintiff generally concedes that the one-year statute of limitations under Code of Civil Procedure section 340.6 applies to her first and second causes of action. The allegations of the first cause of action show that the factual basis of the claim is directly tied to and based on defendants' alleged professional misconduct in rendering services to her under their engagement agreement. (FAC ¶¶ 1-54.) The breach of fiduciary duty claim alleged in the second cause of action is similarly directly based on allegations of professional misconduct in defendants' rendering of legal services to Plaintiff as part of their engagement in the Kim Action. (FAC ¶¶ 3, 55-69.) In the third cause of action, Plaintiff explicitly alleges that "Plaintiff's claim for failure to return unearned fees arises from Defendants' violation of professional obligations owed by virtue of the attorney-client relationship and is governed by Code of Civil Procedure section 340.6(a)." (FAC ¶ 83.) (*See also* FAC ¶ 36 ["This Action is governed by Code of Civil Procedure section 340.6(a)], incorporated by reference into all three causes of action in FAC ¶¶ 41, 55, 70.) All of these causes of action as alleged by Plaintiff therefore are based on claims that defendants violated professional obligations they have by virtue of being attorneys in the course of rendering professional services to Plaintiff in the Kim Action. (*Lee v. Hanley, supra*, 61 Cal.4th at 1129.) The one-year statute of limitations of Code of Civil Procedure section 340.6(a) applies to those causes of action.

B. Commencement of Statute of Limitations Based on Actual Injury

"Actual injury occurs when the client suffers any loss or injury legally cognizable as damages in a legal malpractice action based on the asserted errors or omissions. [Citations omitted.] Under the Legislature's codification of *Budd*, section 340.6, subdivision (a)(1), will not toll the limitations period once the client can plead damages that could establish a cause of action for legal malpractice." (*Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison* (1998) 18 Cal.4th 739, 743.)

Laird v. Blacker (1992) 2 Cal.4th 606 cited by Plaintiff, decided before the California Supreme Court's decision in *Jordache*, addressed when a client sustains "actual injury" for the statute of limitations to begin to run under Code of Civil Procedure section 340.6. Based on the facts and issues presented in that case, the Court held that the one-year time period to file a malpractice action "commences when a client suffers an adverse judgment or order of dismissal in the underlying action on which the malpractice action is based." (*Id.* at 609, 615.) The Court rejected the plaintiff's contention that the statute of limitations is tolled while an appeal of the judgment or dismissal of the underlying action is pending. (*Id.* at 615.) "Section 340.6 and its legislative history make clear that once a client has been injured by an adverse judgment, the limitations period commences and is not tolled by filing an appeal absent continuous representation by the trial attorney. [Citation omitted.]" (*Id.* at 618.)

Courts distinguish between the fact of damage and the amount of damage in analyzing whether actual injury has occurred and the statute of limitations accrues. (*Id.* at 612.) Discovery of the fact of damage is enough to start the statute of limitations, even if the amount damages the plaintiff may ultimately sustain is uncertain. (*Id.* at 612, 613; *Jordache, supra*, 18 Cal.4th at 751, 752.) "A plaintiff need not suffer a *complete* loss of a right or reach final adjudication of an issue to sustain actual injury." (*Village Nurseries v. Greenbaum* (2002) 101 Cal.App.4th 26, 42 [italics in original].) (*See also Sharon v. Porter* (2019) 41 Cal. App. 5th 1, 8 ["'An existing injury is not contingent or speculative simply because future events may affect its permanency or the amount of monetary damages eventually incurred.' [Citation omitted.] In other words, 'we must distinguish between an actual, existing injury that might be remedied or reduced in the future, and a speculative or contingent injury that might or might not arise in the future.' [Citation omitted.]" (Emphasis added.).)]

The cases are clear that actual injury occurs when an adverse judgment or case ending determination is made, even if there may be remedies available to the party to try to modify or reverse the adverse outcome through an appeal or a motion for relief under Code of Civil Procedure section 473. (*Laird, supra*, 2 Cal.4th at 609, 615, 618; *Turley v. Wooldridge* (1991) 230 Cal.App.3d 586, 591-593 [potential for 473 relief from allegedly unfair marital termination agreement did not delay "accrual of actual injury," citing as an example *Goebel v. Lauderdale* (1989) 214 Cal.App.3d 1502, 1507 in which Court concluded actual harm from attorney malpractice occurred when plaintiff was convicted of a crime, "**not** when that decision was immune from challenge by way of motion for reconsideration or appeal." (Emphasis in original.).)]

Plaintiff seems to suggest in her opposition that her motion for new trial was granted because a hearing was set on the motion and the court entered a ruling on that motion on June 14, 2024, such that accrual of the statute of limitations was delayed until that "final" ruling. To the extent Plaintiff characterizes the events as the court granting the new trial motion, that characterization is inaccurate. The June 14, 2024 ruling unequivocally denied Plaintiff's motion for new trial. (FAC Exh. A, pp. 2-4, and p. 7, ¶ 1 ["The Court finds that the motion for new trial lacks merit. Therefore the Court denies the motion for new trial."].) The "judgment" entered in the June 14, 2024 ruling referenced in the title of the order reflects an award of attorneys' fees and costs against Park and in favor of Kim. (FAC Exh. A, p. 6, p. 7 ¶ 2.)

Plaintiff argues these cases are distinguishable because she had the possibility of making a motion for new trial, which she did, and that while the opportunity to change the outcome of the Statement of Decision and Judgment entered February 20, 2024 existed through her new trial motion, she had not suffered actual harm, and the statute of limitations was tolled. Plaintiff, however, does not explain why the filing of a motion for new trial should be treated differently for purposes of the accrual of actual injury than the opportunity to modify or reverse an adverse judgment through an appeal, or to vacate an adverse determination through a motion for relief under Code of Civil Procedure section 473, or to vacate or modify a conviction by a motion for reconsideration or appeal in the decisions cited above. In those cases, the courts have held the statute of limitations accrued on entry of the adverse judgment, even if remedies were available to the injured party to seek relief.

Plaintiff repeatedly refers to the "Statement of Decision" filed February 20, 2024, but the document reflects it is a "Statement of Decision and Judgment." (Def. RJN Exh. 1.) That judgment was entered against her in the Kim Action upon the court's filing of the Statement of Decision and Judgment on

February 24, 2024 is consistent with Code of Civil Procedure section 664 which requires the clerk of the court to enter judgment "in conformity to the decision of the court, immediately upon the filing of such decision." (Code Civ. Proc. § 664(a).) Plaintiff's malpractice-based claims accrued, and she suffered actual injury, when judgment was entered against her on February 20, 2024 under the foregoing case authority. Plaintiff alleges other facts that support that Plaintiff suffered actual and appreciate harm and damages before February 20, 2024. (FAC ¶¶ 3, 23-25 [defendants allegedly contacted Plaintiff's expert witness on July 18, 2023, they withdrew on July 25, 2023, and Plaintiff was forced to hire a new expert witness with trial held in December 2023, suggesting she suffered damages for the cost of the new expert by December 2023] and FAC ¶¶ 32-34 [defendants' attorney-client relationship terminated in July 2025, and they failed to timely return the retainer and unearned fees when the relationship terminated, suggesting she suffered actual harm and damages at that time].)

Nevertheless, the filed February 20, 2024 Statement of Decision and Judgment entered in the Kim Action is an "adverse judgment" under *Laird* and "actual injury" under *Jordache* sufficient to commence the statute of limitations not later than that date. Even if subsequent "judgments" were entered in the case based on the Statement of Decision and Judgment entered on February 20, 2024, Plaintiff cites no authority that would not make the statute of limitations commence based on entry of the Statement of Decision and Judgment on February 20, 2024 under *Laird*, *Jordache*, and the actual injury provision of Code of Civil Procedure section 340.6(a).

Conclusion and Denial of Leave to Amend

Based on Plaintiff's own allegations and the February 20, 2024 Statement of Decision and Judgment of which the Court takes judicial notice, the complaint "clearly and affirmatively" demonstrates that the claims alleged by Plaintiff are barred by the statute of limitations which accrued no later than February 20, 2024. (*Committee for Green Foothills, supra*, 48 Cal.4th at 42; *Lee v. Hanley, supra*, 61 Cal.4th at 1232.) Plaintiff commenced this action in June 2025, months after the one-year statute of limitations of Code of Civil Procedure section 340.6 had expired. Plaintiff was given an opportunity to try to amend her original complaint to state claims not barred by the statute of limitations. Plaintiff failed to do so. While she asks for leave to amend if the demurrer is sustained, she assert only that she can "provide additional specificity without altering the underlying claims." (Opp. p. 10, ll. 16-17.) The flaw in the FAC is not the lack of specific allegations; the specific allegations in the FAC show her claims are barred by the statute of limitations. The demurrer to the FAC is **SUSTAINED, WITHOUT LEAVE TO AMEND.**

6. 9:00 AM CASE NUMBER: C25-02761
CASE NAME: INGRID MARROQUIN VS. CHINA WALL BUFFET INC.,
*HEARING ON MOTION IN RE: SET ASIDE DEFAULT AS TO TARA KUMAR PURSUANT TO CCP 473
FILED BY: KUMAR, TARA
TENTATIVE RULING:

Defendant Tara Kumar ("Defendant") filed a motion to set aside default on March 6, 2026 (the "Motion re Default"). The Motion re Default was set for hearing on July 6, 2026.

Background

A responsive pleading to plaintiffs Ingrid Marroquin, Clint Garcia, and Araceli Garcia (collectively, "Plaintiffs") Complaint was due January 2, 2026. See Memorandum of Points and Authorities filed March 6, 2026 as part of Motion re Default ("MPA"), p. 3. Defendant did not file a response by that date. *Id.* A default was then entered against Defendant and in favor of Plaintiffs on March 3, 2026. MPA, p. 3; see also Request to Enter Default filed March 3, 2026. Defendant subsequently filed the Motion re Default on March 6, 2026 asserting that a calendaring error by counsel prevented filing of the responsive pleading. See MPA, p. 3. The Proof of Service dated March 6, 2026 attached to the Motion re Default reflects service on Plaintiffs' counsel.

The Motion re Default is unopposed.

Analysis

Defendant is seeking mandatory relief from a default that was entered due to attorney error. A default must be vacated when the defendant's motion is (1) filed within six months after entry of default, (2) supported by an attorney's affidavit attesting to the attorney's mistake, (3) accompanied by the proposed responsive pleading, and (4) accompanied by a supporting memorandum. See Code Civ. Proc. § 473(b); Cal. Rules of Court, rule 3.1113(a). Where the statutory requirements are met, a trial court does not have discretion to refuse relief unless the court finds that the default was not caused by the attorney's mistake. See *Talbott v. Ghadimi* (2025) 109 Cal.App.5th 967, 977. Section 473 is to be construed liberally, and any doubts in its application should be resolved in favor of the party seeking relief. See *Maynard v. Brandon* (2005) 36 Cal.4th 364, 371-372.

Here, Defendant filed the Motion re Default three days after the entry of default. This is well within the six-month deadline. Additionally, the Motion re Default is supported by a declaration by Defendant's counsel, supporting memorandum, and proposed answer. See MPA; Declaration of Melanie D. Popper filed March 6, 2026 as part of Motion re Default, and **Exhibit A** thereto (including Proposed Answer to Complaint). The evidence demonstrates that the mistake was the result of attorney error, and mandatory relief applies pursuant to Code of Civil Procedure section 473(b). As such, the Motion re Default is GRANTED.

Disposition

The Court hereby finds and orders as follows:

1. The Motion to Set Aside Default is GRANTED.
2. A responsive pleading shall be filed and served within ten (10) calendar days from notice of entry of this order.
3. Moving party to prepare the order after hearing.

7. 9:00 AM CASE NUMBER: C25-02766
CASE NAME: HARTLEY HANSEN VS. KNIGHTSEN ELEMENTARY SCHOOL DISTRICT
***HEARING ON MINOR'S COMPROMISE AS TO HARTLEY HANSEN**
FILED BY: HANSEN, HARTLEY
TENTATIVE RULING:

Plaintiff Hartley Hansen, by and through the duly appointed guardian ad litem herein, Erik Hansen, filed a Petition for Approval of Compromise of Claim on or about May 4, 2026 (the "Minor's Compromise")

seeking court approval of the compromise and proposed disposition set forth therein. See Code Civ. Proc. § 372 and Rule 7.950 *et seq.* of the California Rules of Court (CRC). The Minor's Compromise was set for hearing on September 21, 2026. Thereafter, the hearing date was advanced to July 6, 2026. See Order entered June 16, 2026.

Analysis

The Minor's Compromise is unopposed. The Court has considered the verified Minor's Compromise and finds the proposed terms to be just and reasonable.

Disposition

The Court finds and rules as follows:

1. The Minor's Compromise is APPROVED.
2. The Court shall enter the proposed form of order lodged with the moving papers.

8. 9:00 AM CASE NUMBER: C25-03817
CASE NAME: PHADENDRA TIMILSINA VS. EVERBRIGHT, LLC,
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: BRIGHT PLANET SOLAR, INC.,
TENTATIVE RULING:

Defendant Bright Planet Solar, Inc.'s motion to compel arbitration is **GRANTED**.

Plaintiff has owned his home since 2019. In 2024, an Everbright salesperson told Plaintiff that due to new technology, Plaintiff did not need as many solar panels and thus solar panels would be a feasible option for Plaintiff. Plaintiff alleges some confusing and high-pressure sales tactics. Ultimately, Plaintiff agreed to have solar panels installed although he alleges that he was misled as to where the panels would be installed. (Comp. ex. A.) Bright Panel was the company responsible for installation. When it came time to install the solar panels, Plaintiff was told that the panels would be installed on the patio and not just the roof. Ultimately, the installation of solar panels on the patio caused the patio roof to leak, creating water damage to the home. The installation also resulted in structural problems with the patio roof.

Plaintiff filed this case against Everbright and Bright Panel for (1) fraud (Everbright only), (2) fraud by concealment (Everbright only), (3) negligent misrepresentation (Everbright only), (4) violation of Consumer Legal Remedies Act, (5) Unfair competition, (6) negligence, (7) violation of Civil Code section 1689.5 (Everbright only), (8) construction defect, (9) breach of warranties and (10) violation of home improvement contract requirements.

Bright Planet filed this motion to compel arbitration seeking to have all claims against it sent to arbitration.

Existence of an Agreement to Arbitrate

Whether the arbitration agreement is governed by the Federal Arbitration Act, 9 U.S.C. § 1, *et seq.* ("FAA") or by the California Arbitration Act, Code of Civil Procedure section 1280 *et seq.* ("CAA"), the threshold issue of whether a valid and enforceable agreement to arbitrate exists is determined under California law and procedures. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413; Code Civ. Proc. 1281, 1281.2, 1290.2.) Arbitration agreements may be invalidated on

the same grounds other contracts may be invalidated, including fraud, duress or unconscionability. (*Armendariz v. Foundation Health Psych. Servs., Inc.* (2000) 24 Cal.4th 83, 98.

“[B]efore a court may order the parties to arbitration, the court must determine the threshold question of whether a valid agreement to arbitrate exists. [Citations.] The party seeking to compel arbitration bears the burden of establishing a valid agreement to arbitrate by a preponderance of the evidence, while the party opposing arbitration bears the burden of establishing any necessary facts in defense by a preponderance of the evidence. [Citations.]” (*Jones v. Solgen Construction, LLC* (2024) 99 Cal.App.5th 1178, 1195.)

Plaintiff argues that he never knowingly agreed to arbitrate his claims due to fraud. The complaint attaches the solar agreement with Everbright and Bright Planet, which includes an arbitration clause with Bright Planet at pages 33-34 of exhibit A.

“[C]laims of fraud in the execution of the entire agreement are not arbitrable under either state or federal law.” (*Rosenthal, supra*, 14 Cal.4th at 416.) Fraud in execution or inception occurs when “‘the promisor is deceived as to the nature of his act, and actually does not know what he is signing, or does not intend to enter into a contract at all, mutual assent is lacking, and [the contract] is void.’” (*Id.* at 415.) “Fraud in the inducement, by contrast, occurs when “‘the promisor knows what he is signing but his consent is *induced* by fraud, mutual assent is present and a contract is formed, which, by reason of the fraud, is *voidable*.’” (*Ibid.*)

“In order to defeat a petition to compel arbitration, the parties opposing a petition to compel must show that the asserted fraud claim goes specifically ‘to the ‘making’ of the agreement to arbitrate,’ rather than to the making of the contract in general.” (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 973.) “‘The allegation [and evidence] may be directed solely at the “making” of the agreement to arbitrate or, as recognized by the doctrine of fraud in the inception, it may be directed at the “making” of the contract as a whole.’ [Citation.]” (*Rosenthal, supra*, 14 Cal.4th at 417.)

Here, Plaintiff declares that his primary language is Nepali and while he can communicate in English his ability to read and understand lengthy documents is limited. (Timilsina dec. ¶3.) Plaintiff states that he had several conversations with Everbright and Bright Planet representatives and relied on the information and explanations provided by them. (Timilsina dec. ¶5-7.) Plaintiff “understood... that certain documents needed to be signed so that they could begin the permitting and approval process for the proposed solar project.” (Timilsina dec. ¶8.) But he “was led to believe that [he] would later have an opportunity to review and approve the final details of the project before moving forward with installation.” (Timilsina dec. ¶9.) No one ever told Plaintiff that there was an arbitration agreement in the contract. (Timilsina dec. ¶10.) He was instructed where and when to sign. (Timilsina dec. ¶17.) Plaintiff was shown the documents at 5:31:22pm and signed them at 5:32:45pm. (Timilsina dec. ¶22; Bhandari dec. ¶13 and ex. B.)

Defendant provides no evidence from its sales representative or those from Everbright regarding when occurred when Plaintiff signed the contract.

The Court finds that the preponderance of the evidence shows Plaintiff entered into the contract containing the arbitration clause with Bright Planet. Plaintiff acknowledges that he signed the document when and where he was told to do so. He also acknowledges that he knew he was signing some documents so that the defendants could start the permitting and approval process. But Plaintiff argues that he was led to believe he could finalize the agreement later. This evidence shows that Plaintiff knew he was signing an agreement with the defendants (which included the arbitration

agreement with Bright Planet), even if, allegedly, he did not understand the full scope of the agreement due to misrepresentations by the defendants. He has not shown that such misrepresentations were related to the agreement to arbitrate. The Court finds that this evidence does not show fraud in the execution or inception, and thus, Defendant has shown that the parties entered into a contract, which included an arbitration clause.

Although *Jones* is cited by the Plaintiff in the unconscionability section, it is worth addressing *Jones* here as that case also discussed when a contract was entered into. (*Jones, supra*, 99 Cal.App.5th 1178.) *Jones* upheld a trial court's ruling that an 81-year-old plaintiff with demonstrated poor technology skills did not validly enter into an arbitration clause in a contract where the contract was 21 pages and the electronic stamp on the document shows it was reviewed for 38 seconds. (*Id.* at 1201.) There are some similarities between this case and *Jones*, including that Plaintiff reviewed the contract here for less than 2 minutes. In *Jones*, however, the plaintiff claimed that she had not signed any contract. Whereas here, Plaintiff understood that certain documents needed to be signed and that he signed where he was told to sign. (Timilsina dec. ¶¶8 and 17.)

The Court finds that the parties entered into an arbitration agreement.

Delegation Clause

In reply, Defendant argues that issues of arbitrability have been delegated to the arbitrator. It argues that the arbitration agreement states that disputes are arbitrated under the American Arbitration Association. Defendant should have raised this issue in its moving papers. Further, on the merits this argument fails.

"The delegation of [arbitrability issues] to the arbitrator must be clear and unmistakable. [Citation.]" (*Cabatit v. Sunnova Energy Corp.* (2020) 60 Cal.App.5th 317, 321-322; *Tiri v. Lucky Chances, Inc.* (2014) 226 Cal.App.4th 231, 242.) The arbitration agreement does not include a clear and unmistakable delegation clause. There is no clear reference to delegation or to the arbitrator deciding these gateway issues.

Defendant then points to the AAA's arbitration rules, which empower the arbitrator to "rule on their own jurisdiction" and argues that this constitutes a delegation clause. [AAA Construction Industry Arbitration Rules, Rule R-9(a)-(b) (2024).] Defendant did not include a copy of these rules, but assuming these rules are as represented, a general reference to arbitrate before AAA is not sufficient to show a clear and unmistakable delegation clause. (See, *Gostev v. Skillz Platform, Inc.* (2023) 88 Cal.App.5th 1035, 1052.)

Therefore, the Court finds issues of arbitrability shall be decided by the Court.

Claims Covered by Agreement

The next question for the Court is whether the arbitration clause includes the claims at issue in this case.

"Courts consistently recognize that the duty to arbitrate a dispute arises from the language of the contract itself. [Citation.] 'An agreement for the submission of a dispute to arbitration defines and limits the issues to be decided.' [Citation.]" (*Brinkley v. Monterey Financial Services, Inc.* (2015) 242 Cal.App.4th 314, 331.) " '[T]he decision as to whether a contractual arbitration clause covers a particular dispute rests substantially on whether the clause in question is "broad" or "narrow." ' [Citation.] 'A "broad" clause includes those using language such as "any claim arising from or related to this agreement" [Citation] or "arising in connection with" the agreement' [Citation]. 'It has long been the rule in California that a broadly worded arbitration clause ... may extend to tort claims that

may arise under or from the contractual relationship. “There is no requirement that the cause of action arising out of a contractual dispute must be itself contractual. At most, the requirement is that *the dispute* must arise out of contract.” [Citations.]” (*Rice v. Downs* (2016) 248 Cal.App.4th 175, 186.)

Here, Plaintiff is suing Bright Planet for violation of Consumer Legal Remedies Act, unfair competition, negligence, construction defect, breach of warranties and violation of home improvement contract requirements.

In the installation agreement with Bright Planet, the parties agreed to arbitrate “all related disputes, claims and counterclaims arising out of or relating to this Agreement, the relationships described hereunder, the Installation, or any alleged or claimed oral or other agreement related to the System. This agreement to arbitrate extends to all claims of any nature, including, but not limited to, claims for breach of contract, tort claims, claims at law or in equity, or claims arising under statute.” (Bright Planet Agreement p. 4 (Comp. Ex. A p. 33).)

The arbitration clause is broad and includes “all disputes” and “claims” “arising out of or relating to this Agreement, the relationships described hereunder, the Installation”. The Court finds that this agreement covers the tort and statutory claims alleged here as they all arise out of the parties’ agreement and the related installation.

Unconscionability

“Unconscionability of the arbitration clause is a defense to a motion to compel arbitration. [Citation.] “One common formulation of unconscionability is that it refers to “an absence of meaningful choice on the part of one of the parties together with contract terms which are unreasonably favorable to the other party.” [Citation.] As that formulation implicitly recognizes, the doctrine of unconscionability has both a procedural and a substantive element, the former focusing on oppression or surprise due to unequal bargaining power, the latter on overly harsh or one-sided results.” [Citation.] ‘Arbitration is favored in this state as a voluntary means of resolving disputes, and this voluntariness has been its bedrock justification.’ [Citation.]” (*Cabatit v. Sunnova Energy Corp.* (2020) 60 Cal.App.5th 317, 322.)

“The party opposing a motion to compel arbitration bears the burden of showing unconscionability. [Citation.] The trial court may exercise its discretion to refuse to enforce a contract if it is both procedurally and substantively unconscionable. In making its determination, the trial court employs a sliding scale: ‘the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.’ [Citation.]” (*Id.*)

Plaintiff has not shown where there is substantive unconscionability in the agreement. For a court to refuse to enforce an arbitration agreement based on unconscionability, there must be both procedural and substantive unconscionability. Since Plaintiff has not shown the agreement contains any substantive unconscionability provisions, this argument fails and the Court need not address the issue of procedural unconscionability further.

FAA and CAA Rules

Plaintiffs argue that the arbitration clause in the subject purchase agreement should not be enforced, based on “a possibility of conflicting rulings on a common issue of law or fact.” (Code Civ. Proc., § 1281.2(c).) However, Defendant has argued that the FAA applies here. “Because the Federal Arbitration Act (9 U.S.C. § 1 et seq.; FAA) contains no provision analogous to section 1281.2,

subdivision (c), that subdivision cannot be applied to deny the enforcement of arbitration clauses governed by the FAA. [Citations.]” (*Gloster v. Sonic Automotive, Inc.* (2014) 226 Cal.App.4th 438, 446.)

Thus, in determining whether to apply section 1281.2(c), the Court must first determine if the FAA applies. Here, the contract with Bright Planet includes a governing law section, which states that “the Federal Arbitration Act governs our agreement to arbitrate, unless specifically prohibited by state law.” (Bright Planet Contract p.4 (Comp. ex. A at p. 33).) Further, Bright Planet’s Vice President of Finance states that “Bright Planet provides solar installation services in multiple states across the United States.” (Johnson dec. ¶13.)

The Court finds that the FAA applies here and therefore, Code of Civil Procedure section 1281.2(c) is preempted as to this agreement.

9. 9:00 AM CASE NUMBER: L25-03358
CASE NAME: JASON CLAUSING VS. MCCracken EXCAVATION & UNDERGROUND INC,
HEARING IN RE: MOTION TO AMEND JUDGMENT TO ADD PARTIES
FILED BY:
TENTATIVE RULING:

Assignee and current judgment creditor George Sommers (“Judgment Creditor”) filed a Motion for Order Amending Judgment Nunc Pro Tunc on February September 13, 2025 (the “Motion to Amend Judgment”). The Motion to Amend Judgment was set for hearing on July 6, 2026. No opposition has been filed.

Background

This matter was initiated by a Request that Clerk Enter Judgment and Judgment on Final Order, Decision or Award of the Labor Commissioner filed by the State of California Department of Industrial Relations. A judgment was entered thereon by the Court on March 26, 2025 (the “Judgment”). The Judgment totaled \$19,782.38 and was entered as against defendant and judgment debtor McCracken Excavation & Underground Inc (the “Judgment Debtor”). An assignment was filed on November 25, 2025, reflecting the assignment of the Judgment to the current Judgment Creditor.

Analysis

Under Code of Civil Procedure section 187, the trial court is authorized to amend a judgment to add additional judgment debtors. Code Civ. Proc. § 187; *Danko v. O’Reilly* (2014) 232 Cal.App.4th 732, 735-36.

This sometimes occurs under an “alter ego” theory. “Judgments may be amended to add additional judgment debtors on the ground that a person or entity is the alter ego of the original judgment debtor.” *Danko v. O’Reilly, supra*, 232 Cal.App.4th at 736, quoting *Greenspan v. LADT LLC* (2010) 191 Cal.App.4th 486. Amendment of a judgment to add an alter ego is an equitable procedure based on the theory that the court is not amending the judgment to add a new defendant but is merely inserting the correct name of the real defendant. *Id.* Such a procedure is an appropriate and complete method by which to bind new defendants where it can be demonstrated that in their capacity as alter ego of the corporation they in fact had control of the previous litigation, and thus were virtually represented in the lawsuit. *Id.*

In California, two conditions must be met before the alter ego doctrine will be invoked. First, there must

be such a unity of interest and ownership between the corporation and its equitable owner that the separate personalities of the corporation and the shareholder do not in reality exist. Second, there must be an inequitable result if the acts in question are treated as those of the corporation alone. *Sonora Diamond Corp. v. Superior Court* (2000) 83 Cal.App.4th 523, 538.

Among the factors to be considered in applying the doctrine are commingling of funds and other assets of the two entities, the holding out by one entity that it is liable for the debts of the other, identical equitable ownership in the two entities, use of the same offices and employees, and use of one as a mere shell or conduit for the affairs of the other. *Id.* at 538-539. Other factors which have been described in the case law include inadequate capitalization, disregard of corporate formalities, lack of segregation of corporate records, and identical directors and officers. *Id.*

No one characteristic governs, but the courts must look at all the circumstances to determine whether the doctrine should be applied. *Id.* at 539. Alter ego is an extreme remedy, sparingly used. *Id.*

First, Judgment Creditor's motion is not supported by a proper declaration. Rather, a short one paragraph declaration was signed purporting to attest that "the foregoing is true and correct" under penalty of perjury. This may have been an attempt to attest to the truth of the matters stated in the many pages in the motion appearing before the declaration page. However, much of the preceding pages contain argument and citation to legal authorities. It is not proper to comingle factual averments together with argument and legal citations in a declaration under penalty of perjury.

Second, even if only the factual averments could be properly considered, little to no information is proffered about the underlying matters giving rise to the judgment or the scope of liability for such matters. Certainly, there are no detailed facts proffered regarding the factors that might support a finding of alter ego. For example, nowhere does the Judgment Creditor purport to say anything about whether and to what extent Judgment Debtor and any of its principals engaged in the disregard of corporate formalities such that its principals ought to be held liable as alter egos.

Merely showing that collection has proved fruitless and certain people are or were officers and/or directors of the corporate Judgment Debtor is woefully inadequate to establish a basis for the imposition of alter ego liability.

No other basis has been shown to impose alter ego liability on Jacqueline Zimmer McCracken or Robert J. McCracken.

Lastly, the Court notes that although there appears to be references to some sort of motion relating to garnishment, no such relief is referenced in the notice of motion or proposed order and that discussion appears to have been erroneously included in the papers.

Disposition

The Court finds and orders as follows:

1. The Motion to Amend Judgment is DENIED.
2. The Court shall issue the order after hearing.

10. 9:00 AM CASE NUMBER: MSC20-00271

CASE NAME: MENASCO VS KILARR

*HEARING ON MOTION IN RE: ATTORNEYS FEES

FILED BY: IANCU, JERI

TENTATIVE RULING:

Motion for Attorneys' Fees filed February 23, 2026 is CONTINUED *sua sponte* by the Court to **August 3, 2026, 9:00 in Department 34**. Moving party to give notice.

11. 9:00 AM CASE NUMBER: MSC21-00846

CASE NAME: HE VS MERIDIAN

*HEARING ON MOTION IN RE: FOR LEAVE TO FILE THIRD AMENDED COMPLAINT

FILED BY:

TENTATIVE RULING:

Plaintiff Enlan He's Motion for Leave to File a Third Amended Complaint is **CONTINUED** to 9:00 a.m. on September 14, 2026 in Department 34 to be heard concurrently with Plaintiff's Motion to Extend the 5-Year Statutory Deadline to Bring Case to Trial.

12. 9:00 AM CASE NUMBER: N26-0307

CASE NAME: ERIC TOBIASON VS. THERESE WILLIAMS

*HEARING ON MOTION IN RE: NTC AND MTN FOR RECONSIDERATION AND RELIEF FROM ORDER ON CIVIL HARASSMENT RESTRAINING ORDER

FILED BY: WILLIAMS, THERESE

TENTATIVE RULING:

Defendant Therese Williams ("Defendant") filed a motion for reconsideration and relief from a civil restraining order on April 30, 2026 (the "Motion re Relief"). The Motion re Relief was set for hearing on July 6, 2026.

Background

A civil harassment restraining order was entered against Defendant on April 21, 2026 and served on April 28, 2026. See Civil Harassment Order after Hearing filed April 21, 2026; Civil Harassment Proof of Service filed April 28, 2026. Defendant filed the Motion re Relief on April 30, 2026 asserting that a courtroom scheduling change caused Defendant to miss the initial hearing despite being present in the courthouse. See Memorandum of Points and Authorities filed April 30, 2026 as part of Motion re Relief ("MPA"), p. 3. The Proof of Service dated April 29, 2026 attached to the Motion re Relief reflects service on plaintiff's counsel.

The Motion is unopposed.

Analysis

In the Court's discretion, the Court concludes that the matter should be heard by the judge who presided over the prior proceedings, Judge Athanasiou in Department 14.

Disposition

The Court hereby finds and orders as follows:

1. The hearing is continued to **August 11, 2026**, at **9:00 am**, for hearing before Judge Athanasiou in **Department 14**, 100 37th Street Richmond, CA 94804.
2. Moving party to give notice of the new hearing date.

13. 9:00 AM CASE NUMBER: N26-0309

CASE NAME: CLAIM OF:STEFAN ANANYEV

***HEARING ON MINOR'S COMPROMISE**

FILED BY: ANANYEV, VADIM

TENTATIVE RULING:

Petitioner Vadim Ananyev ("Petitioner"), as the parent and asserted guardian ad litem of the minor claimant Stefan Ananyev (the "Minor") filed a Petition for Approval of Compromise of Claim on or about February 18, 2026 (the "Minor's Compromise") seeking court approval of the compromise and proposed disposition set forth therein. See Code Civ. Proc. § 372 and Rule 7.950 *et seq.* of the California Rules of Court (CRC). The Minor's Compromise was set for hearing on July 6, 2026.

Analysis

The Minor's Compromise is unopposed. The Court has considered the verified Minor's Compromise and finds the proposed terms to be just and reasonable.

However, it does not appear that Petitioner was ever duly appointed by order as the guardian ad litem of the Minor.

Disposition

The Court finds and rules as follows:

1. **Parties to Appear to address the appointment of Petitioner as the guardian ad litem of the Minor.**

14. 9:00 AM CASE NUMBER: N26-0380

CASE NAME: CLAIM OF:KARLA ARIAS

***HEARING ON MINOR'S COMPROMISE**

FILED BY: ARIAS, FRANCISCO

TENTATIVE RULING:

Petitioner Francisco Arias ("Petitioner"), as the parent of the minor claimant Karla Elizabeth Arias (the "Minor") filed a Petition for Approval of Compromise of Claim on or about March 4, 2026 (the "Minor's Compromise") seeking court approval of the compromise and proposed disposition set forth therein. See Code Civ. Proc. § 372 and Rule 7.950 *et seq.* of the California Rules of Court (CRC). The Minor's Compromise was set for hearing on July 6, 2026.

Analysis

The Minor's Compromise is unopposed. The Court has considered the verified Minor's Compromise and finds the proposed terms to be just and reasonable.

Disposition

The Court finds and rules as follows:

1. The Minor's Compromise is APPROVED.
2. The Court shall enter the proposed forms of order lodged with the moving papers.

Discovery Law & Motion

15. 9:01 AM CASE NUMBER: C26-00316
CASE NAME: G.D. VS. WALNUT CREEK LUXURY CARS, LLC
*HEARING ON MOTION FOR DISCOVERY STAY AND QUASH JUNE 3, 2026 ORAL DEPOSITION
FILED BY: G.D.
TENTATIVE RULING:

Parties to Appear.